

MOTION PURSUANT TO
SECTION 19.2-169.1
AND 19.2-169.5

RECEIVED

OCT 13 1983

SMYTH COUNTY GENERAL
DISTRICT COURT

Nancy Mason, Dep. Clerk

4:15 P.M.

The undersigned Petitioners, Court Appointed Counsel for Lem Davis Tuggle, would herewith move this Court for two evaluations pursuant to the provisions of Sections 19.2-169.1 to determine whether or not the Defendant lacks substantial capacity to understand the proceedings against him and to assist his attorneys in his own defense and pursuant to 19.2-169.5 to determine whether or not at the date of the alleged offense herein the Defendant may have been affected by mental disease or defect and would assign the following reasons:

1. The Defendant has heretofore been confined in the penal system of the Commonwealth of Virginia for a number of years.

2. The undersigned believe, on information, that the said Defendant was the subject of a number of psychological evaluations and other psychological testings during his confinement in the penal system of the Commonwealth of Virginia all of which will be shown by his records contained in his files with the penal system of the Commonwealth of Virginia and would indicate mental illness or disorder.

3. The Defendant has heretofore been evaluated at Southwestern State Hospital, Marion, Virginia for mental defects or disorders in approximately 1971 and the undersigned is not informed of the results of said evaluations.

WHEREFORE the undersigned Petitioners pray that this Court might direct an evaluation of the Defendant, Lem Davis Tuggle, all pursuant to Section 19.2-169.1 of the Code of Virginia and 19.2-169.5 of the Code of Virginia to determine whether or not the Defendant

herein has substantial capacity to understand the proceedings against him and to assist his Attorneys in the defense of his case, and, further to determine whether or not the at the time of the alleged offense the Defendant was suffering any mental disease or defect.

Given under my hand this the 13th day of October 1983.

JOHN H. TATE, JR.,
COURT APPOINTED ATTORNEY

CERTIFICATE

I hereby certify that a true copy of the foregoing was this day delivered unto Danny R. Lowe, Attorney for the Commonwealth, Court House, Marion, Virginia, given under my hand this 13th day October 1983.

[Signature]
JOHN H. TATE, JR.

ORDER

Upon hearing the representations of counsel for Lem Davis Tuggle that the defendant lacks substantial capacity to understand the proceedings against him or to assist his attorney in his own defense, the Court finds that there is no probable cause to believe that the defendant lacks substantial capacity to understand the proceedings against him or to assist his attorney in his own defense.

Upon hearing the representations of counsel for Lem Davis Tuggle that the defendant's actions during the time of the alleged offenses may have been affected by mental disease or defect, the Court finds that there is no probable cause to believe that the defendant's actions during the time of the alleged offenses may have been affected by mental disease or defect.

The motion of the accused, pursuant to §18.2-67.8 of the Code of Virginia, 1950, as amended, is denied. Such section only applies to Article 7 (Criminal Sexual Assault), Chapter 4 of Title 18.2 and has no application to the charges against Lem Davis Tuggle. No evidence was offered to show that failure to exclude spectators and conduct a closed preliminary hearing would prejudice the accused. 10/14/83 David G. Brown, Judge

PETITION

The undersigned, Court appointed attorneys, herewith move this Court to allow unto the attorneys for the Defendant the necessary and reasonable expenses, including expert witness fees and evaluation fees, in order that they may properly represent the Defendant, Lem Davis Tuggle, in the matters now pending before this Court. In support of their petition, the said Court appointed attorneys represent as follows:

I.

The Defendant has been indicted in this Court for the crime of capital murder.

II.

Pursuant to §19.2-163(2) of the Code of Virginia, the Court has the power under the second paragraph thereof as follows: "The Circuit Court shall direct the payment of such reasonable expenses incurred by such Court appointed attorney as it deems appropriate under the circumstances of the case."

In the case at bar, the Attorney for the Commonwealth has had the benefit and availability of a pathologist employed by the State; a dental odontologist; the services of the forensic lab, and the services of a ballistic expert. The attorneys for the Defendant allege and aver to this Court that the Defendant is entitled, under the foregoing section, to have such independent evidence available to him as might be shown by an independent evaluation of the scientific evidence of the Commonwealth and of the evidence existing in this case.

Wherefore, the undersigned prays that this Court order and direct that the attorneys for the Defendant may submit unto this Court estimates of costs and charges for independent pathologist, a forensic serologist, an

independent ballistics examiner, and an independent odontologist to evaluate the scientific evidence against the Defendant herein.

LEM DAVIS TUGGLE

By Counsel

CWYN, TATE & TATE
Marion, Virginia
Court Appointed Counsel
for Defendant

By Joseph S. Tate
Joseph S. Tate

CERTIFICATE

I hereby certify that a true copy of the foregoing Motion was this day mailed unto Danny R. Lowe, Attorney for the Commonwealth, Court House, Marion, Virginia.

Given under my hand this the 3 day of November, 1983.

Joseph S. Tate
Joseph S. Tate

Received and filed, this the 3
day of Nov, 1983
Deputy Clerk

1 is matter came on to be heard on the 18th day of
2 November, 1983, before the Honorable J. Aubrey Matthews,
3 Judge of the Circuit Court of Smyth County, Virginia.

4 THE COURT: Alright, in the case of Commonwealth v. Tuggle,
5 counsel for the defendant has heretofore advised the
6 Court that they desired a hearing on petitions which--
7 to be filed, and the Court fixed today at nine o'clock
8 and the matter was continued until a later time today,
9 and Mr. Tate, how many petitions do you have there?

10 MR. JOSEPH S. TATE: Your Honor, there's one motion--

11 THE COURT: Motion.

12 MR. JOSEPH TATE: --pursuant to Section 19.2-169 and 19.2-169.5,
13 and then there's a petition.

14 THE COURT: Well, where--where is that, I--

15 MR. JOSEPH TATE: The petition, Your Honor?

16 THE COURT: No--

17 MR. JOSEPH TATE: Or the motion?

18 THE COURT: --the motion.

19 MR. JOSEPH TATE: Uh, well, I'm not certain. I have a file
20 copy of it, but I don't--

21 MR. DANNY R. LOWE: I believe your file copy may be General
22 District Court--I don't believe there's a written, filed
23 in this Court, I've never had a copy of it.

24 MR. JOSEPH TATE: My--mine says Circuit Court at the top.

25 It may--

THE COURT: Yeah, but it was marked out and--for General
District Court.

MR. DANNY LOWE: Is that the one that was delivered to me on

October the 13th, 1983?

MR. JOSEPH TATE: Yes.

MR. DANNY LOWE: It said General District Court.

THE COURT: And was received October 13th, 1983, in the Smyth County General District Court, Nancy Musser, Deputy Clerk, four-fifteen p.m.

MR. DANNY LOWE: Your Honor, I'm aware of the motion--

THE COURT: Motion, and it's the same motion as--

MR. JOSEPH TATE: Yes, sir. Is--

THE COURT: Alright.

MR. JOSEPH TATE: Yes, sir. It is the motion pursuant to 19.2-169.1 and 19.2-169.5. Yes, sir.

THE COURT: Alright.

MR. JOSEPH TATE: Those are separate. One of them deals with his capacity, potential capacity to understand the proceedings against him, that is 169.1; and 169.5 deals with his condition on the date of the alleged offense.

THE COURT: I understand that. Alright.

MR. JOSEPH TATE: I'd ask Your Honor to treat that motion as our motion for--

THE COURT: I have no problem, I just wanted to make sure that I--and this was my understanding several weeks ago when you and when John Tate requested a hearing.

MR. JOSEPH TATE: Yes, sir.

THE COURT: Alright. Well, first, Mr. Commonwealth, you have any objection to that motion?

MR. DANNY LOWE: On the motion pursuant to having him evaluated as to the--those matters of competency to stand trial

and his condition at the time of the offense. I don't concur in the motion, but I don't oppose the motion.

THE COURT: Alright. Gentlemen, this is a capital murder case and I feel that motion should be granted and that the evaluation be made as requested under 19.2-169.1 and 19.2-169.5, and that motion is granted. Alright, now, then your next--.

MR. JOSEPH TATE: Your Honor, we have filed a petition with the Court requesting the appointment of certain--or allowing us to employ on behalf of the defendant certain expert people to review the evidence--physical evidence which is in the possession of the Commonwealth. I told Commonwealth's Attorney--I would ask the Court to take this petition under advisement at this time. Our position is that this defendant would be entitled to have access to the physical evidence of the Commonwealth for review and for copying, and the Code does not use the term testing but I think that is implied in the spirit of that statute, so that the defendant can develop his own testimony--his own expert witnesses. This defendant is indigent and Your Honor has--or the General District Court--I'm not sure which--has previously made a finding of his indigency, and that right to inspect, photocopy, and test is rendered illusory by his indigency. Were he a similarly situated defendant charged with this offense and financially able to employ experts on his own behalf, he would I think have the right to have this evidence evaluated. As an indigent,

1 he does not have the funds to do that, and we think
 2 that the Fourteenth Amendment to the Constitution of
 3 the United States made applicable--equal protection
 4 clause of the Constitution of the United States made
 5 applicable to the states, demands that he have this
 6 right in a real manner, and therefore, we'd ask the
 7 Court to authorize us as his attorneys to employ at
 8 the expense of the Commonwealth sufficient experts to
 9 evaluate the evidence. I might point out that
 10 Section 19.2-163, subsection 2, makes provision that
 11 for the Circuit Court to direct the payment of such
 12 reasonable expenses incurred by such court-appointed
 13 attorney as it deems appropriate under the circumstances
 14 of the case. I think that gives to Your Honor the
 15 discretion and the authority to allow us to employ
 16 experts on behalf of the defendant. And we ask that
 17 Your Honor do so, and as I've indicated, I would at
 18 this point ask Your Honor to take the matter under
 19 advisement. And if you'd like for us to submit
 20 authorities, we would be willing to do so.

21 MR. DANNY LOWE: Your Honor, I oppose the motion and I--
 22 clearly the question is a matter of what is a matter
 23 of right that this defendant has. And under Rule 3A:14
 24 of the Rules of Court which applies to discovery by
 25 the accused, we submit that upon written motion of an
 accused, the Court shall order the Commonwealth's
 Attorney to permit the accused to inspect, copy, or
 photograph any relevant statements, confessions, going

1 on to written reports of autopsies, ballistic tests,
 2 fingerprint analysis, handwriting analysis, blood,
 3 urine, breath tests, and other scientific reports,
 4 and so on. We submit that the defendant has that right
 5 to inspect, copy, or photograph, but that is the extent
 6 of the right that he has to--as to access to the
 7 evidence that the Commonwealth has in this case whether
 8 it's for him or against him. We do submit that if we
 9 had any exculpatory evidence that we realize that we
 10 have the burden and the duty to give that to the
 11 defense. There's been no evidence that we have been
 12 withholding any exculpatory evidence. I know of none.
 13 The--all the evidence has been made available and we
 14 will submit to any order of the Court to produce for
 15 inspection, copying, or photographing any evidence,
 16 any physical evidence we have in the case, but we
 17 state that that's the extent of the right that this
 18 accused has whether he has money or does not have money.
 19 There is no constitutional right to go beyond that.
 20 And that doesn't mean that he would be treated any
 21 differently if he was--if he'd had a lot of money and
 22 could afford to pay for it all himself. That the right
 23 only goes to inspect, copy, etc.

24 THE COURT: Gentlemen, I see no reason for the Court to take
 25 this motion under advisement. I agree with the Attorney
 for the Commonwealth and will order that defendant and
 his attorneys be provided by the Attorney for the
 Commonwealth all matters permitted and directed by the

Rules of the Supreme Court, and I'm sure Commonwealth has no objection to providing that.

MR. DANNY LOWE: No, sir.

THE COURT: Alright. So that will be the order.

MR. JOSEPH TATE: Your Honor, I assume that you are not including in that order the authorization for us to employ independent experts.

THE COURT: I am not.

MR. JOSEPH TATE: Alright, sir. We except to that portion of the ruling.

THE COURT: You may.

MR. JOSEPH TATE: Thank you, Your Honor.

THE COURT: Alright.

THESE ARE ALL THE PROCEEDINGS HAD IN THIS MATTER
ON THIS DATE.

ORDER

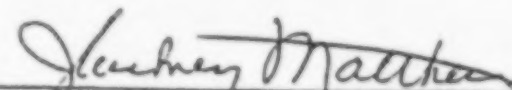
THIS DAY came Danny R. Lowe, Esq., Attorney for the Commonwealth; came also the Defendant, Lem Davis Tuggle, led to the bar in the custody of the Jailer of this Court; came also his Attorney, Joseph S. Tate, Esq., heretofore appointed by the Court.

It appearing to the Court that a motion and petition has heretofore been filed on behalf of the Defendant. Thereupon, the Court proceeded to hear statement of Counsel for the Defendant and the Attorney for the Commonwealth and upon the conclusion thereof is of the opinion to and doth ORDER that the petition be granted to the extent that the Defendant and his attorneys be provided access to such information that may be beneficial in the preparation of his defense on all matters permitted and directed by The Rules of the Supreme Court.

Further, the Court is of the opinion to and doth ORDER that the motion for psychiatric evaluation pursuant to 19.2-169.1 and 19.2-169.5 Code of Virginia of 1950, as Amended is granted.

The Court further ORDERS that the Sheriff of this County transport the Defendant to Central State Hospital, Petersburg, Virginia as required to satisfy said hospital's schedule being established pursuant to this order.

ENTER: THIS THE 18TH DAY OF NOVEMBER, 1983.


Aubrey Matthews, Judge

Recorded in C. Law
Order Book No. 33
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COMMONWEALTH of VIRGINIA

CENTRAL STATE HOSPITAL
P O. Box 4030
Petersburg, Virginia 23803

DEPARTMENT OF
MENTAL HEALTH AND MENTAL RETARDATION

Telephone (804)-861-7000

December 1, 1983

Honorable J. Aubrey Matthews, Judge
Circuit Court of Smyth County
Marion, Virginia 24354

*File
JAM*

RE: LEM DAVIS TUGGLE
Reg. No. 99058

Dera Judge Matthews:

The above-named individual was ordered to undergo psychiatric evaluation pursuant to Sections 19.2-169.1 and 19.2-169.5 of the Code of Virginia, and was admitted to the Forensic Unit of Central State Hospital on November 22, 1983. He is reported to be charged with capital murder.

On the basis of psychiatric interview, psychiatric evaluation, psychological interview, psychological testing, psychological evaluation, neurological examination, encephalographic examination (EEG), reports of ward behavior, and other available information, we are of the opinion that the above-named defendant is competent to plead and stand trial in that he does not lack substantial capacity to understand the proceedings against him or to assist in his own defense.

We are also of the opinion that the above-named defendant was competent at the time of the alleged crime or crimes in that he was not suffering from a defect of reason due to disease of the mind or defect of the mind and knew the nature, character and consequences of his acts and the difference between right and wrong. Furthermore, we are of the opinion that the above-named defendant was not suffering from a loss of volition due to disease of the mind or defect of the mind at the time of the alleged crime or crimes; he was not suffering from an irresistible impulse.

Because the above-named defendant is charged with a capital crime, we advised him of his Miranda Rights to have counsel present as well as the other Miranda Rights relative to the substance of our interviews being used at a hearing if he is convicted of capital murder. The defendant waived his Miranda Rights and signed such a waiver. We have formed an opinion as to the issue of the probability of future dangerousness but we are not reporting it to the Court at this time because we were not requested to do so.

RE: LEM DAVIS TUGGLE
Reg. No. 99058

The patient complained of chronic insomnia and we prescribed Halcion 0.5 mgm. at bedtime for those nights he is unable to fall asleep. Continuation of this medication under the supervision of your jail physician and jail medical staff is suggested. As with all incarcerated persons, he should not be allowed to accumulate any pills for a harmful act against himself while he remains in the jail.

If there are any questions, please do not hesitate to contact us through the secretaries at 804/861-7124.

We are requesting this individual be returned to the jurisdiction of your Court at the earliest possible time. Further hospitalization is not indicated.

Yours very truly,

Miller M. Ryans, M.D.
Miller M. Ryans, M. D.
Forensic Psychiatrist

Arthur Centor, Ph.D.
Arthur Centor, Ph. D.
Licensed Clinical Psychologist

cc: Jimmy L. Warren, Clerk
Mr. Danny R. Lowe, Commonwealth Attorney
Mr. Joseph S. Tate, Defense Counsel
Mr. Jerry L. Archer, Sheriff
Jail Physician
Reimbursement Division

AC/MNR/efr

VIRGINIA: IN THE CIRCUIT COURT OF SMYTH COUNTY

COMMONWEALTH OF VIRGINIA

vs.

MOTION

LEM DAVIS TUGGLE

TO THE HONORABLE J. AUBREY MATTHEWS, JUDGE OF SAID COURT:

I.

The undersigned court appointed counsel has heretofore filed with this Court a request for fees to provide an independent psychiatric examination of the Defendant herein. The undersigned verily believe that the Defendant, in this case, is entitled to be examined by a psychiatrist or group of psychiatrists chosen by counsel for the Defendant because of the seriousness of the charges heretofore lodged against the Defendant.

II.

The undersigned have made arrangements with Dr. C. Robert Showalter, Blue-ridge Hospital, Box 100, Charlottesville, Virginia, to perform an evaluation and make unto the attorneys for the Defendant a report on the condition of the Defendant at the time of the alleged offenses herein and at the present time with regard to his capacity to understand the proceedings against him, and to assist in the defense of his trial.

III.

That the undersigned Petitioners verily believe that on previous occasions this Court has directed that prisoners be transported from the Smyth County Jail in Marion, Virginia, to a confinement facility either in

Albemarle County, Virginia, or the City of Charlottesville for the purpose of evaluations by the said Dr. C. Robert Showalter and his staff at the Institute of Law, Psychiatry and Public Policy which is located at Blue-ridge Hospital in Charlottesville, Virginia.

Wherefore, the undersigned prays that this Court might enter an order directing the Sheriff of this County to transport the said Lem Davis Tuggle to a confinement facility in either the City of Charlottesville or Albemarle County, Virginia, and to make available the said Defendant for examination by Dr. C. Robert Showalter and the staff of the Institute of Law, Psychiatry and Public Policy located at Blue-ridge Hospital in Charlottesville, Virginia, in order that the Defendant may have the benefit of an independent psychiatric examination and report for the trial of the charges against him.

JOHN H. TATE, JR., AND JOSEPH S. TATE
Court Appointed Counsel

By John H. Tate, Jr.

GAYN, TATE & TATE
Marion, Virginia
Court Appointed Counsel for Defendant

By John H. Tate, Jr.

CERTIFICATE

I hereby certify that a true copy of the foregoing motion was this day delivered unto Danny R. Lowe, Attorney for the Commonwealth, Court House, Marion, Virginia.

Given under my hand this 27th day of December, 1983.

John H. Tate, Jr.

JOHN H. TATE & JOSEPH S. TATE
ATTORNEYS AT LAW
MARION, VIRGINIA

Received and filed, this the 27
day of Dec, 1983.
Deputy Clerk

1 This matter came on to be heard on the 3rd day of
2 January, 1984, before the Honorable J. Aubrey Matthews, Judge
3 of the Circuit Court of Smyth County, Virginia.

4 THE COURT: Alright, for the record, I believe on last Friday
5 we had hearing scheduled in motions filed in Commonwealth
6 v. Tuggle, and on Friday, Mr. Tate for Mr. Tuggle was
7 not able to communicate due to laryngitis or something
8 until
9 and we continued it/ today, so, gentlemen, you may--

10 MR. JOHN H. TATE, JR.: Your Honor, I will argue the motion.

11 Joe Tate still is about unable to speak. He's had
12 laryngitis for about four or five days. Your Honor,
13 we have filed a motion on behalf of the defendant to
14 have him examined by Dr. C. Robert Showalter, who is
15 one of the staff physicians and head of the Law--Institute
16 of Law and Psychiatry at the Blue Ridge Hospital which
17 is associated with the University of Virginia. And the
18 Court will recall that at the time Mr. Tuggle was
19 committed to Central State Hospital in Petersburg, I
20 asked the Court at that time to consider sending him
21 there and filed a motion to--asking that the Court allow
22 to his court-appointed counsel funds to employ an
23 independent psychiatrist to examine Mr. Tuggle. We
24 have available to furnish to Dr. Showalter records of
25 psychiatric examinations of Mr. Tuggle while he was an
inmate of the State penal system. We have secured the
records of Mr. Tuggle from Southwestern State Hospital
when he was committed there in 1971, for psychiatric
observation. Dr. Showalter has agreed to examine Mr.

Mr. Joe Tate

1 Tuggle and to give to his court-appointed counsel a
2 report. Of course, the Court is well aware of the
3 serious nature of the charges against Mr. Tuggle
4 including the charge of capital murder. And in the
5 defense of this case, it is our belief that Mr. Tuggle
6 is entitled to be examined by a psychiatrist of his
7 choosing in addition to the examination which was
8 provided by a psychiatrist employed by the State at
9 Central State Hospital. I guess it's Eastern State,
I'm sorry. Petersburg.

10 THE COURT: Central.

11 MR. JOHN TATE: Is it Central? Okay, but we have--we do have
12 the psychiatric records, he has been examined in the
13 penal system, he was examined here at Southwestern
14 State Hospital in 1971, and in a case of this severity
15 and with a charge this severe against the defendant, we
16 have made arrangements to have this done and Dr. Showalter
17 and his associates have agreed to examine him. It would
18 require the transportation of Mr Tuggle to the Charlottesville
19 area for examination by him. I really, you know,
20 I think--I mean, the Court, I think, will recall that I
21 initially asked that he be admitted there--this Court
22 has had reports from this group before, I believe in
23 the Anderson case sometime ago, and they are considered
24 to be experts not only in the field of law and psychiatry
25 but particularly with regard to the examination of a
person charged with capital murder. So we would move
the Court to permit this independent examination of

1 Mr. Tuggle, so that we would have the benefit of that
2 report in representing him.

3 MR. DANNY R. LOWE: Your Honor, since that's the one motion
4 that's been made to the Court at this time, I'll address
5 on that motion. On November the 19th, 1983, defense
6 counsel in this case moved to have Mr. Tuggle evaluated
7 pursuant to 19.2-169.1 and the Code sections after that,
8 but particularly 19.2-169.5. And just to sum it pretty
9 much up, the position of the Commonwealth, we oppose
10 this motion that they make because 169.1 does state
11 that if at any time after the attorney for the defendant
12 has been retained or appointed and before the end of the
13 trial the Court finds upon hearing evidence or representa-
14 tions of counsel that there's probable cause to believe
15 the defendant lacks the potential capacity to understand
16 the proceedings against him to to assist his attorney in
17 his own defense the Court shall order that a competency
18 evaluation be performed by at least one psychiatrist,
19 clinical psychologist, or master's level psychologist
20 who is qualified by training and experience in forensic
21 evaluation. And the Court did order this and this report
22 has been filed in this Court. That he has been evaluated
23 by a clinical psychologist and by psychiatrist. The
24 whole section on criminal procedure makes no difference
25 in a case of capital murder as to how many places you
have to run these people around to and have them evaluated
from any other type of case. We have complied with the
Code. I didn't oppose the motion to have him evaluated

1 nder--at that time in November. But it's the position
2 of the Commonwealth that that's as far as the Court has
3 to go until they can find somebody that suits what they
4 want the Court to say, and there's no requirement that
5 they send him around until defense counsel gets a
6 suitable report for them. So I oppose that motion. And
7 all the--his--mainly what we're talking about is his
8 constitutional right to be evaluated and that's been
9 met. So going beyond that is pure benevolence of the
10 Court, and we'd ask that the Court not do it.

11 MR. JOHN TATE: Your Honor, in response to that, and the file
12 will reflect that at the same time that the motion was
13 filed to commit him in November of 1983, there was filed
14 simultaneously with that motion, a petition to the Court
15 for funds for the defendant to be able to have a
16 psychiatric evaluation. Now, Mr. Tuggle was sent to
17 Central State Hospital and the reports indicate that he
18 was received there on the 22nd day of November, 1983,
19 and the report back to the Court is the 1st day of
20 December, eight days later. And we would say to the
21 Court that the very short time that he was there for
22 evaluation should indicate to the Court that in a State
23 facility with all the patients they have, that in a
24 period of seven days there couldn't have been a great
25 deal of evaluation of Mr. Tuggle and we respectfully
request that the Court grant this evaluation and direct
his transportation to Charlottesville in order that--
we're not fishing for a report, we're asking the Court

1 exactly what we asked the Court to begin with. To
2 permit us to have an independent evaluation, the Court
3 had denied our petition for funds to do that, and we
4 had now made arrangements individually to have it done.

5 MR. LOWE: Your Honor, I would like to reply to that by saying
6 that under 19.2-169.5, under (b), location of evaluation,
7 this evaluation could have been performed on an out-patient
8 basis either in a mental health facility or in jail
9 and that's certainly a whole lot less attention than
10 Mr. Tuggle got in this case because Mr. Tuggle was
sent to a hospital.

11 MR. JOHN TATE: Well, Your Honor, in that regard, if Mr. Tuggle
12 were able to make bond and were able to be out on his
13 bond at this point in time, he could go--

14 THE COURT: Now, wait a minute--wait a minute, Mr. Tate. I--I
15 don't think bond would have been granted in this case,
as I know.

16 MR. JOHN TATE: Well, I mean, there was an original bond fixed
17 by the magistrate--

18 THE COURT: Well--

19 MR. JOHN TATE: --when Mr. Tuggle was charged. Had he--

20 THE COURT: Gentlemen, I--

21 MR. JOHN TATE: --been able to make that bond, then he would
22 have been free to go to these evaluations.

23 THE COURT: Gentlemen, I granted your motion for an evaluation
24 and the man has been sent and the evaluation made. They
25 took all the time that they require to make that evaluation.
I believe in your statement, you indicated that you had

1 made arrangements and I'm sure that you recognize the
2 fact that Mr. Tuggle cannot be left in Charlottesville
3 or anyplace else. The Sheriff would take him, the
4 Sheriff stay with him, and the Sheriff bring him back.
5 Which means that it would be a matter of just a few
6 hours for an evaluation. I granted the motion for an
7 evaluation because of the seriousness of the case, and
8 any further motion for evaluation, and specifically the
9 motion today, is denied. The matter is scheduled for
10 trial on January 17th, as I recall, I don't have a
calendar before me but I believe that is the date fixed
11 for trial.

12 MR. LOWE: Yes, sir.

13 THE COURT: Alright. Now, are there any further motions filed?

14 MR. JOHN TATE: Well, Your Honor, I need to address the Court
15 with regard to the 18th of January. Prior to the time
16 that the Court set this I have a federal jury trial
17 scheduled for the 18th in Abingdon, and if--Your Honor,
18 we have until seven days before the trial to file a
19 motion and I'm advising the Court now we intend to file
a motion to change of venue from Smyth County.

20 MR. LOWE: Your Honor, I believe the motion's already filed,
21 if I recall, because I received a copy already--

22 MR. JOSEPH TATE: It has been filed.

23 MR. LOWE: --so I would ask that we have a hearing on that
today.

24 THE COURT: Well, I'm ready to--

25 MR. LOWE: I'm ready.